

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 11, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Allen, and pursuant to support received by Ms. Broyles and Mr. Shanor, agenda item #13(d) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 25, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Dr. Rinne moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry regarding a voucher payable to Appraisals, Inc. (\$975.00), Lois Huff, City Treasurer, and Lt. Mark Munari, Police Department, provided information regarding appraisal of two properties located at 400-408 W. 17th Street, which are adjacent to the site proposed for the new public safety building (Dinneen property), noting the property owner shared the cost of the appraisal. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential District to MR-2 Medium Density Residential – Developing District for a tract of land situated in a portion the East Half of the East Half (E $\frac{1}{2}$ E $\frac{1}{2}$) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW $\frac{1}{4}$ SW $\frac{1}{4}$ NW $\frac{1}{4}$) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, to be known as the Bluffs, 9th Filing (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road). Mayor Kaysen advised a letter (on file with City Clerk's office) had been received from the applicant requesting the item, as well as an affiliated agenda item pertaining to annexation, be withdrawn. Upon inquiry, Mr. Allen, Public Services Committee Chair, confirmed that Committee members had no objection to the item being withdrawn. Upon query and with no objection being raised from members of the governing body, Mayor Kaysen stated the item was being withdrawn from the agenda.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from P Public to NB Neighborhood Business for Lot 1, Block 4, Storey Boulevard Extension, Cheyenne, Wyoming (located east of and adjacent to Converse Avenue, approximately one-quarter mile south of Storey Boulevard). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (#3970)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-2, County Agriculture, to AG, Agriculture, for Lot 1, Block 1; Lot 1, Block 2; and Lot 2, Block 2, Plains Industrial Park, and changing the zoning classification from A-2, County Agriculture, to HI, Heavy Industrial, for Lot 3, Block 2, Plains Industrial Park, Cheyenne, Wyoming (located south of I-80, west of Campstool Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road). Mayor Kaysen advised, as identified earlier, a letter (on file with City Clerk's office) had been received from the applicant requesting the item be withdrawn from the agenda. Upon query and with no objection being raised from members of the governing body, Mayor Kaysen stated the item was being withdrawn from the agenda.

[CA] RESOLUTION - Authorizing submission of a pre-application form to the State Loan and Investment Board for a loan through the State Revolving Fund on behalf of the Cheyenne Governing Body for the purpose of design and construction of a Wetland and Stormwater Quality Facility -- referred to Finance Committee (sponsor -- Dr. Rinne).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Diamond Estates, Fourth Filing, a replat of a portion of Tract 316, Sunnyside Addition, Seventh Filing, Cheyenne, Wyoming (located west of and adjacent to Pierce Avenue, north of Rock Springs Street) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] Agreement between the City of Cheyenne and Cheyenne Umpires Association to provide umpire services for the 2013, 2014 and 2015 Softball Seasons (softball registration revenue). Motion (per Consent Agenda) approved. (#5968)

[CA] Agreement for Juvenile Compliance and Diversion Officer Services between Laramie County, the City of Cheyenne, and the Laramie County Community Juvenile Services Joint Powers Board for reimbursement of dual-commissioned Juvenile Diversion Officer's salary (Federal Office of Juvenile Justice and Delinquency Prevention Grant). Motion (per Consent Agenda) approved (revenue to City \$37,578.00). (#5969)

[CA] Agreement between the Wyoming Department of Transportation and the City of Cheyenne for the West Lincolnway Project (Wyoming Department of Transportation funding). Motion (per Consent Agenda) approved. (#5970)

Real Estate Purchase Agreement between the City of Cheyenne and W. E. Dinneen, Inc., for the purchase of real estate located at 405 West 18th Street, 1704 Pioneer Avenue, 410 West 17th Street, and 416 West 17th Street, Cheyenne, Wyoming (1% Specific Purpose Sales & Use Tax). William Overling posed numerous questions involving the proposed acquisition of the property as the site of a new public safety building. His queries included the property appraisal amount and what the City is proposing to pay; renovation costs, and thoroughness of researching other potential sites. In response, Lt. Mark Munari, Cheyenne Police Department, provided information on the property involving existing building and lot infrastructure and renovation benefits; renovation costs; property appraisal (\$1.655 million) vs. owner's requested purchase price (\$1.986 million); existing underground as well as upper level parking availability; project funding in the amount of \$25 million approved by voters for use of 1% Specific Sales and Use Tax, and other sites that had been analyzed. Bob Morris, Downtown Development Authority Board member, spoke in support of the City acquiring the property for the public safety building, noting the importance of maintaining a downtown police presence which also promotes utilization of a vacant building site. John Dinneen, representative of W.E. Dinneen, Inc., property owner, provided a brief history of the property's use by the owner, noting the former Dinneen car dealership business that had occupied a majority of the site has been closed for six years. He reviewed the owner's efforts in putting together a team of professionals to ascertain the property's attributes and marketing options to utilize the site to its highest and best use for economic value to the community. He discussed the property appraisal amount vs. the requested purchase price, stating an appraisal is an estimated value only and that commercial property appraisals are more difficult to do as it is hard to find comparable properties, and provided reasons why the owner believes some components of the building's features should have been assigned more value in the appraisal report. During his comments, Mr. Dinneen referred to visual slides that were displayed and submitted a handout (on file with City Clerk's office) from the appraisal report relative to the square foot market valuation. Upon inquiry, Mr. Dinneen advised as part of the City's acquisition process an environmental assessment of the property will be conducted. Mr. Overling commented in opposition to purchase of the property at this time and suggested other sites be checked into relative to comparison of costs of rehabilitation vs. new building construction. James Perrott Macneil stated his belief that there are not many large properties available and spoke in support of the site as the location for the public safety building. Lt. Munari advised that pursuant to research in preparing information for the tax ballot, the Dinneen property provided the best option for use of taxpayers dollars and that the estimated construction cost includes renovation. Reporting for Finance Committee, Mr. Brown moved to approve in an amount not to exceed \$1,986,000.00, seconded by Mr. Valdez. Discussion topics included: Wording of ballot proposition approved by voters in the funding amount of \$25 million dollars for the project; concern with possible additional costs; future potential to acquire additional properties within the block for expansion; property appraisal valuation vs. owner's requested purchase price; support for the public safety building to be located within the downtown area; suggestion that further research be done on optional sites; estimated fair market value; City not legally restricted to purchasing property at more than the appraised amount; long-range plans for other service areas to be included at the building site; review of other sites that had been analyzed; composition of the site review committee, which included City-County

Emergency Management Agency and Combined Communications dispatch representatives; due diligence efforts, and concerns with renovation and maintenance issues as well as future 6th penny project funding. Comments in support as well as non-support of purchasing the property were made. During discussion and upon inquiry, Lt. Munari and Chief Brian Kozak, Police Department, provided information in response to questions, including proposed project costs; criteria used by the committee in reviewing sites, which included a preferred downtown location to be in close vicinity to municipal court and jail facilities for reduced costs and efficiencies, and positive elements of the Dinneen property. Upon inquiry, Mayor Kaysen provided information on future expansion (long-range plan) at the site that might include re-location of Municipal Court offices. Upon inquiry to Council members whether there would be any objection to him asking questions for clarification relating to topics that were being raised during discussion, and no objection being voiced, Mayor Kaysen requested information from Chief Kozak and Lt. Munari regarding costs for a downtown location vs. outside of the downtown area associated with such areas as fiber optics; proposed use of the building's underground parking area; environmental assessment information (to be received prior to closing date if purchased); information provided to the public on the proposed building site and structure renovation plans prior to the ballot proposition being voted upon; funding amount (\$25 million) voters approved, and challenges discovered with other potential locations reviewed by the site committee. Motion to approve failed (due to a tie vote). Voting "yes" -- Mr. Brown, Ms. Broyles, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting "no" -- Mr. Allen, Mr. Cook, Mr. Luna, Dr. Rinne and Mr. Shanor.

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:08 p.m.

[CA] Professional Services Agreement between the City of Cheyenne and Chicago Dog House, LLC for the provision of concession services at the Pioneer Park Concession and Restroom Facility (revenue to City) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction at City-owned tennis facilities (revenue to City) -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5956, Contingency and Development Agreement, between the City of Cheyenne and parties involved in the Microsoft Dataplant Demonstration Project to effect a date change. Motion (per Consent Agenda) carried. (#5956)

[CA] Contract Modification No. 1 to Contract No. 5781, between the City of Cheyenne and Ayres Associates for the addition of strategic grant writing services and associated preliminary engineering design required by grants to enable securing of additional grant funding for the Cheyenne West Edge (Lower Capitol Basin) Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 4 to Contract No. 5496, between the City of Cheyenne and Ayres Associates for additional testing services for the East Pershing Boulevard Reconstruction Project (Phase IV) (2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-20-13 for furnishing three new pickup trucks for the Public Works Department, Street & Alley Division (2007 - 2010, 2011- 2014 1% Sales Tax) -- referred to Finance

Committee.

[CA] Consideration of Bid #M-9-13 for a Contract for the East Pershing Boulevard/19th Street/Converse Avenue Improvements Project between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, Wyoming (2007 - 2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-11-13 for annual purchase of furnishing aggregate for the Street and Alley Division (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-12-13 for annual purchase of hot mix, tack oil and cold mix for the Street and Alley Division (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 700 E. Carlson; Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; W. E. Dinneen, Inc. d/b/a [to be determined], retail, 400 W. Lincolnway; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust d/b/a Mayflower, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; The Peaks Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, rest., 300 E. 8th Ave.; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, rest., 112 W. 17th St.; Los Abuelos Mexican Restaurant, LLC d/b/a Los Abuelos Mexican Restaurant, retail, 1601 Central Ave.; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Liquorland, retail, 1958 Dell Range Blvd. #C; Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; KZ Corporation d/b/a Goofy's Tavern, retail, 2801 E. Lincolnway; Stillwater, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol

Ave.; Mehn, Inc. d/b/a Casa De Trujillo, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne, Inc. d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; 2 Doors Down 2, Inc. d/b/a 2 Doors Down 2, rest., 1802 Dell Range Blvd., #2; Morris House Enterprises, Inc. d/b/a Morris House Bistro, rest., 2114 Warren Ave.; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Restaurant, rest., 216 E. 17th St.; RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Cafe, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Steamboat's, LLC d/b/a Steamboat's Wyoming Steak and Smoke House, retail, 1947 Dell Range Blvd.; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17th St.; OC Cheyenne, LLC d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down, rest., 118 E. 17th St.; Soo Hyun Choi, LLC d/b/a Tokyo Bowl, rest., 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, rest., 112 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 301 W. Lincolnway; Freedoms Edge Brewing 2, LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 1509 Pioneer Ave.; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; Blazin Wings, Inc. d/b/a Buffalo Wild Wings Grill & Bar, bar & grill, 1740 Prairie Ave.; The Suite, LLC d/b/a The Suite, bar & grill, 1901 Central Ave.

Carol Intlekofer, City Clerk, offered a suggestion that in lieu of reading the list of renewal applicants for the 2013-2014 term, as shown on the meeting agenda, the listing itself be recorded in its entirety in the official minutes of the meeting together with any motions and votes. She noted, pursuant to state statute requirements, publication of notice of renewal applications and posting of notices on respective premises have been achieved, and the holding of a public hearing before the governing body has been conducted. She further stated that the City Attorney has advised that this statement on the record provides sufficient documentation to identify those individual renewal applications that may be acted upon at the meeting. Upon query by Mayor Kaysen to members of the governing body, there was no objection voiced to recognize the renewal applicants as listed on the agenda in lieu of the Clerk reading the individual applicants, and Mayor Kaysen announced the reading of renewal applicants' information would be waived. Mr. Brown moved to approve the renewal applications "en masse", seconded by Mr. Valdez. Mr. Brown moved to divide the question to allow for a separate vote on Stillwater, Inc. d/b/a Mingles, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body. Mr. Brown moved to approve the liquor license application for Stillwater, Inc. d/b/a Mingles subject to the terms and conditions of the Resolution and Settlement Agreement approved by the governing body on Feb. 25, 2013, seconded by Mr. Valdez. Upon inquiry, Dan White, City Attorney, advised wording of the motion preserves the City's rights under the Resolution and Settlement Agreement and makes clear that renewal of the liquor license for Mingles is subject to the terms and conditions of the Resolution

and Settlement Agreement. Motion carried. Voting “yes” -- all members of the governing body. Upon inquiry regarding whether a representative for Olive Garden was present at the meeting to provide information concerning failure of a police compliance check during 2012, it was noted that no one was present on behalf of the establishment. Police Chief Brian Kozak provided information available on the topic, stating the individual involved in the failed compliance check was no longer employed by the licensee. Motion to approve all remaining renewal applicants “en masse” carried. Voting “yes” -- all members of the governing body.

[CA] Authorization to purchase self-contained breathing apparatus equipment from Norco, Inc., single source vendor, through the Firefighter Accountability program (Federal Emergency Management Agency (FEMA) Accountability Grant and 2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

Upon inquiry, Mayor Kaysen provided a brief update on negotiation discussion status involving the City-owned portion of property commonly referred to as the “downtown hole”, advising that interest by adjacent property owners is still ongoing.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:18 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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